

Case Studies in Fair Housing Violations

U.S. Department of Housing and Urban Development (HUD) vs. Pontoriero(2009)

Case Summary

The complainant, an African American person, applied for rental housing, set an appointment with Pontoriero (the respondent), the owner/landlord, and waited outside the building at the appointed time. The respondent never showed, and subsequent phone calls from the complainant inquiring about the apartment were not returned. Later, several separate sets of testers confirmed similar treatment: White testers were shown apartments, and the respondent pursued their applications vigorously. However, African American testers were left waiting: The respondent didn't show, and later phone calls from those testers were unanswered. In addition, the white testers were quoted lower rental rates and were treated more courteously than the African American testers were. The respondent also made discriminatory comments and statements to white testers about Black people.

Protected Classes Involved

Race and color

HUD Findings

The respondent violated the Fair Housing Act by engaging in discriminatory housing practices. The respondent was prohibited from discriminating because of race and/or color in any aspect of sale, rental use, or enjoyment of a dwelling and was therefore required to take the necessary steps to remedy the effects of the illegal, discriminatory conduct, to prevent similar incidents in the future, and to pay damages and a civil penalty for each violation and additional relief as deemed appropriate.

HUD vs. Keating(2012)

Case Summary

The complainant, a mother of two children, told Keating (the respondent/landlord) that she was pregnant. Another adult lived in the unit. The respondent evicted the tenants, stating in writing that the upcoming birth would put the total number of occupants at five, which the respondent said was too many for the apartment.

Protected Class Involved

Familial Status

HUD Findings

The respondent violated the Fair Housing Act by engaging in discriminatory housing practices. The respondent was prohibited from further violations and must pay damages to compensate the complainant and her family for emotional distress, loss of housing, and inconvenience. The respondent was also charged with a civil penalty and ordered to pay additional relief.

HUD vs. Toone(2012)

Case Summary

The complainant, a trans woman, moved into an RV park with another person. She asked RV park owner Toone (the respondent) whether she could wear female clothing in the common areas of the park. The respondent denied the request, stating that there were children around the pool and it wasn't "the type of atmosphere we want to promote on private property." There was no existing dress code at the park.

Shortly after, the respondent distributed new park rules, stating that, "Management reserves the right to refuse entrance to the RV park to any person for any reason other than for reasons based on race, religion, handicapped [sic], color, or national origin." The rule didn't include sex or familial status, which are protected classes under the Fair Housing Act.

The complainant refused to sign due to the omissions and asked that the rules be amended to include protections against sex discrimination. The respondent refused. Less than a month later, the complainant received a notice requesting her to leave, stating that she had five remaining days of paid stay that would be refunded if she immediately vacated the park. Attorneys for both sides were consulted. The complainant attempted to pay rent and offered the rules (signed with a statement that she was not waiving any rights guaranteed by state and federal law). The RV park managers refused the rent and signed rules, saying that the respondent had directed them not to accept them. The respondent initiated eviction proceedings.

HUD contacted the respondent and asked whether he would stay the eviction while HUD conducted an investigation of the complainant's fair housing complaint. The respondent declined, stating he would "do everything legally and morally possible" to

remove the complainant from the park. An eviction hearing was held at a local court, and the court ruled for the respondent, awarding possession of the complainant's lot to the park, \$2,500 in attorney fees, and \$116 in court costs. The complainant was evicted from the property and moved her RV from the park.

Protected Class Involved

Sex

HUD Findings

The respondent was prohibited from discriminating because of sex against any person in any aspect of the sale or rental of a dwelling. As such, the respondent must pay monetary damages: a civil penalty of \$16,000 to each complainant for its violation of the act and additional relief as may be appropriate.

HUD vs. Schimnich(2012)

Case Summary

The complainant, a blind person with back issues, sometimes required the use of a walker. She also suffered from mental disorders, including depression and post-traumatic stress disorder. Schimnich (the respondent) was the owner and manager of a three-unit residential property. The complainant had an emotional support dog that was identified as such with a marked pouch and tags and was registered with the National Service Animal Registry. The respondent had a "no-pet" policy.

When the complainant met the respondent at his rental property and saw the dog, he told her about his "no-pet" policy. She informed him that the dog was a support animal, and he again said, "No pets." The complainant tried to show the respondent the dog's support animal certification paperwork, but he refused to see it, saying he didn't care what it said. The complainant then asked for the respondent's name. He asked why, and she said she would be reporting him. The complainant took down the contact information from the respondent's truck and left, saying she no longer wished to rent from him but would be reporting him.

Protected Class Involved

Disability

HUD Findings

The respondent was prohibited from discriminating on the basis of disability. Damages were awarded, including a \$16,000 civil penalty and any additional relief as appropriate.